

VIRGINIA:

IN THE CIRCUIT COURT FOR MONTGOMERY COUNTY

MOUNTAIN VALLEY PIPELINE, LLC,)
)
Plaintiff,)
)
v.)
)
ALAN HAROLD MOORE, et al.,)
)
Defendants.)

Case No. CL23-1242

JURY TRIAL DEMANDED

RECEIVED AND FILED

JAN 03 2024

Montgomery County Circuit Court
Tiffany M. Couch, Clerk

**RESPONSIVE PLEADINGS OF DEFENDANTS [REDACTED] AND
[REDACTED] TO PLAINTIFF'S SECOND AMENDED COMPLAINT**

Now com [REDACTED]

and respond as follows to the Second Amended Complaint filed against them and others by Plaintiff Mountain Valley Pipeline, LLC ("MVP").

DEMURRER

Defendants [REDACTED] pursuant to VA. CODE ANN. § 8.01-273 and Rule 3:8 of the Supreme Court of Virginia and other applicable law, demur to MVP's Second Amended Complaint on the grounds enumerated below and elaborated upon in their Memorandum in Support of Demurrer to Second Amended Complaint.

1. Count One fails to state a claim in tort upon which relief may be granted.
2. Count Two fails to state a claim upon which relief may be granted under VA. CODE ANN. § 40.1-53.
3. Counts Three and Four fail to state claims for conspiracy upon which relief may be granted.
4. Count Five fails to state a cognizable claim for injunctive relief.

WHEREFORE, Defendants [REDACTED] respectfully pray that the Court grant their Demurrer and dismiss Plaintiff's Second Amended Complaint on the grounds outlined above and explained in detail in their Memorandum in Support of Demurrer to Second Amended Complaint.

ANSWER TO SECOND AMENDED COMPLAINT

Now come Defendants [REDACTED], without waiving their foregoing Demurrer, and answer MVP's Second Amended Complaint as follows. All references below to paragraphs are to paragraphs in the Second Amended Complaint.

1. Defendants admit they oppose in good faith MVP's environmentally destructive and unsafe pipeline project, but lack sufficient information to admit or deny that MVP has "all approvals needed" to complete the pipeline. In all other respects, Defendants deny paragraph 1.

2. Defendants lack sufficient information to admit or deny paragraphs 2 and 3. In addition, paragraph 3 states a series of legal conclusions to which no answer is necessary.

3. Paragraphs 4 and 5 are denied.

4. With respect to paragraphs 6 and 7, Defendants admit only that the Court has subject matter jurisdiction. Defendants deny that venue is proper here on all counts and claims and deny that "the acts" alleged all occurred in Montgomery County and deny "the cause of action arose here" with respect to events alleged to have occurred in Roanoke and Giles Counties.

5. Defendants admit paragraph 8.

6. Defendants lack sufficient information to admit or deny paragraphs 9 through 11. In addition, paragraphs 10 and 11 state legal conclusions to which no answer is required.

7. Defendants deny paragraph 12, although they admit upon information and belief that some individuals named as parties in the Second Amended Complaint attached themselves to equipment used by MVP or its contractors.

8. Defendants lack sufficient information to admit or deny the allegations in paragraphs 13, 14, 15, and 17.

9. Defendants deny paragraph 16.

10. Defendants lack sufficient information to admit or deny paragraphs 18 through 39.

11. With respect to paragraph 40 [REDACTED] admits that on September 5, 2023, she attached herself to equipment at a worksite connected to the MVP pipeline construction project at or near Bradshaw Crossing in Montgomery County, Virginia. [REDACTED] lacks sufficient information to admit or deny that she was situated within one of the MVP easements alleged in paragraph 40 and also lacks sufficient information to admit or deny that her attachment to pipeline construction equipment caused a “work stoppage,” particularly since MVP fails to define that term in its Complaint. Those allegations therefore are denied.

12. For her part, [REDACTED] in response to paragraph 40, asserts the self-incrimination clause of the Fifth Amendment, particularly since she currently is charged with one or more criminal offenses arising out of protests against MVP’s pipeline construction project.

13. Defendants admit that a Facebook page with the moniker “Appalachians Against Pipelines” made a posting along the lines alleged in paragraph 41.

14. Because Defendant [REDACTED] and Defendant [REDACTED] are not identified expressly or by implication in paragraphs 42-47, they do not respond to those allegations. Those Defendants in any event lack sufficient information to admit or deny paragraph 42-47 as written.

15. Paragraphs 48-82 are denied.

16. Any allegations or claims not expressly admitted above by Defendants are expressly denied.

17. Defendants deny they are indebted to Plaintiff in any amounts whatsoever and deny MVP is entitled to any equitable or legal relief.

AFFIRMATIVE DEFENSES

18. All claims and causes of action which allegedly arose out of events in Roanoke County, Virginia, or Giles County, Virginia should be dismissed for improper venue.

19. Defendants' speech and some or all of their conduct concerning MVP's pipeline project are protected by the First Amendment.

20. Plaintiff MVP lacks standing to bring and recover upon Counts I, II, III, IV, and V.

21. The Complaint should be dismissed for misjoinder of claims and parties.

22. Counts I, II, III, IV, and V fail to state cognizable claims upon which relief may be granted for the reasons stated in Defendants' Demurrer, which is incorporated by reference.

23. Plaintiff's claims are barred in whole or in part by the doctrine of unclean hands.

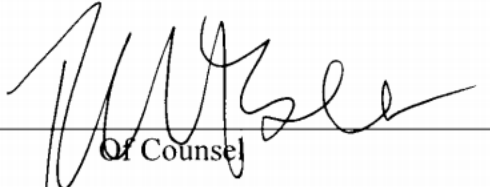
24. Plaintiff's claims are barred in whole or in part by Plaintiff's failure to mitigate its alleged damages.

25. Plaintiff's claims for injunctive relief are barred by the absence of irreparable harm and the presence of adequate remedies at law.

Wherefore, having answered the Second Amended Complaint, Defendants respectfully request that the Court dismiss Counts I, II, III, IV, and V and award them costs and such other relief as the Court deems appropriate.

DEFENDANTS DEMAND TRIAL BY JURY.

[REDACTED]

By: 
Of Counsel

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Counsel for Defendants [REDACTED]

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Responsive Pleadings of Defendants [REDACTED] to Plaintiff's Second Amended Complaint was served by electronic mail and first-class mail, postage prepaid, on:

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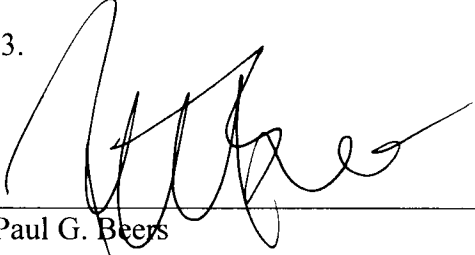
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Dated this 29th day of December, 2023.


Paul G. Beers

December 29, 2023

RECEIVED AND FILED

JAN 03 2024

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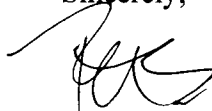
Re: Mountain Valley Pipeline, LLC v. Alan Harold Moore, et al.
Case No. CL23-1242

Dear Ms. Couch:

Enclosed please find the Responsive Pleadings of Defendants Eliza Lox and Carol Gibbons to Plaintiff's Second Amended Complaint and Memorandum in Support of Demurrer of Defendants Eliza Lox and Carol Gibbons to Plaintiff's Second Amended Complaint for filing with the Court in the matter to which we refer above.

Thank you for your assistance in this matter.

Sincerely,



Paul G. Beers

PGB:tgm:9505000

Enclosures

c: Ms. Eliza J. Lox (w/enc.) (By Electronic Mail)
Ms. Carol P. Gibbons (w/enc.) (By Electronic Mail)
Wade W. Massie, Esq. (w/enc.) (By Electronic Mail and First Class Mail)
Seth M. Land, Esq. (w/enc.) (By Electronic Mail and First Class Mail)
Hyatt B. Shirkey, Esq. (w/enc.) (By Electronic Mail and First Class Mail)
Cerid E. Lugar, Esq. (w/enc.) (By Electronic Mail and First Class Mail)
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Appalachians Against Pipelines (w/enc.) (By Electronic Mail and First Class Mail)
Terry C. Frank, Esq. (w/enc.) (By Electronic Mail and First Class Mail)